

ECF - 1500 - CHS, SC
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IN THE UNITED STATES DISTRICT COURT
 DISTRICT OF SOUTH CAROLINA
 CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

PLAINTIFF'S MOTION FOR RECUSAL OF MAGISTRATE JUDGE
MARY GORDON BAKER
AND REQUEST TO VACATE PRIOR ORDERS

1. Introduction

Plaintiff, appearing *pro se*, respectfully moves under 28 U.S.C. § 455(a) and § 455(b)(1) for the recusal of Magistrate Judge Mary Gordon Baker from further participation in this case and for vacatur or *de novo* review of all orders she entered. Since reassignment from Magistrate Judge Molly H. Cherry on or about October 7, 2025, every discovery ruling has been adverse to Plaintiff, often reversing or disregarding prior directives of Judge Cherry without explanation. The resulting pattern creates an appearance of partiality that undermines public confidence in the fairness of these proceedings.

2. Background

1. Under Judge Molly H. Cherry's supervision, Plaintiff pursued discovery diligently. Judge Cherry authorized the issuance of third-party subpoenas, including to former counsel Bonnie Hunt and Hunt Law LLC, and permitted leave to refile motions as necessary.

2. Upon reassignment to Magistrate Judge Mary Gordon Baker, that process changed dramatically. Within roughly two weeks, Judge Baker issued multiple orders—dated October 17 (**Dkt. 185**) and October 20, 2025 (**Dkt. 192**)—denying Plaintiff's motions to compel, to strike attorney Andrew Countryman's filings, and to extend discovery. None of those orders provided substantive reasoning or identified new facts justifying reversal of Judge Cherry's prior rulings.

3. Immediately after Judge Baker's October 20 order Attorney Countryman filed an Objection to Subpoena on October 21, 2025, quoting language from that order to declare Plaintiff's

previously authorized subpoena “plainly incorrect.” The sequence of events demonstrates a close alignment between Countryman’s filings and the Court’s subsequent rulings.

4. Plaintiff also notes that her service of the subpoena upon non-party Bonnie Hunt was conducted in **good faith** and in accordance with the spirit of Rule 45(b)(1). In a prior related action in the South Carolina Court of Common Pleas, Ms. Hunt repeatedly **evaded service** of court documents, and certified-mail attempts were returned unclaimed. To prevent similar delay in this matter, Plaintiff used an alternate, legally recognized method to ensure **actual notice** of the subpoena. Ms. Hunt in fact received the documents, thereby satisfying the rule’s requirement that notice and delivery be effected. Plaintiff declined to waste additional time or expense on a return-receipt mailing when prior history showed it would be ignored. Her actions were consistent with diligent prosecution and were not intended to circumvent proper procedure.

5. This pattern has prejudiced Plaintiff’s discovery efforts and contributed to unnecessary expense and delay, as detailed in Plaintiff’s Notice of Procedural Prejudice and Motion for Extension of Discovery and Reissuance of Subpoenas.

3. Legal Standard

Under 28 U.S.C. § 455(a), a judge “shall disqualify [herself] in any proceeding in which [herself] impartiality might reasonably be questioned.” Section 455(b)(1) further requires recusal where a judge “has a personal bias or prejudice concerning a party.” The standard is objective: whether a reasonable person, knowing all the facts, would question the judge’s impartiality. See *Liljeberg v. Health Services Acquisition Corp.*, 486 U.S. 847 (1988). When bias or its appearance exists, vacatur of affected orders may be required to preserve public confidence in the judiciary.

4. Argument

1. Unexplained Reversal of Prior Orders. Judge Baker’s declaration that Plaintiff’s Hunt Law subpoena was “unauthorized” directly contradicts Judge Cherry’s earlier authorization. The order gave no explanation, no reference to Rule 54(b) or Rule 72(a), and no finding of clear error or changed circumstances. Such a reversal without justification constitutes procedural irregularity and undermines the continuity of judicial administration.

2. Consistent Pattern of Adverse and One-Sided Rulings. Since reassignment, every contested issue has been resolved against Plaintiff and in favor of Attorney Countryman or Defendants, including orders denying subpoena enforcement, denying extensions, and granting protective orders to non-parties. The repetition of this outcome in a short time frame supports an inference of bias or its appearance.

3. Mirroring of Counsel’s Arguments. Judge Baker’s October 20 order echoes the language and reasoning of Countryman’s October 21 objection almost verbatim, further suggesting undue alignment with one side’s position.

4. Prejudice and Public Confidence. Because these rulings collectively prevent Plaintiff from obtaining relevant discovery, the perception of partiality is unavoidable. The Supreme Court

has held that vacatur of orders issued by a disqualified judge is appropriate when necessary to maintain the appearance of fairness. *Liljeberg*, 486 U.S. at 862.

5. The October 20, 2025 order (**Dkt. 192**) also contains factual and procedural inaccuracies that heighten the appearance of bias. The order states that Plaintiff's belief that the Hunt Law subpoena was authorized is "plainly incorrect," despite the fact that the subpoena bears the Court's signature from Judge Molly H. Cherry. The same order further declares that responsive documents "do not exist," although no affidavit or verified statement was provided by Defendants to support that claim. These statements reflect the Court's acceptance of counsel's assertions as fact, without evidence or hearing, which erodes confidence in impartial adjudication.

6. This case also fits into a broader and troubling pattern. In multiple separate matters involving Attorney Andrew Countryman—including prior proceedings before Judge Jennifer B. McCoy (Charleston County Court of Common Pleas, Case No. 2025-CP-10-03145) and Judge Adams (East Cooper Magistrate Court)—Plaintiff has encountered similar irregularities in judicial handling and denials of procedural fairness. Each of these judges demonstrated conduct that has been or will be the subject of formal judicial misconduct complaints filed with the appropriate disciplinary authorities.

7. The recurrence of these concerns across jurisdictions where the same attorney is involved underscores why Plaintiff reasonably questions the impartiality of Magistrate Judge Baker in this federal proceeding. The appearance of bias is no longer confined to a single incident but reflects a consistent pattern that undermines public confidence in the administration of justice.

5. Requested Relief

Plaintiff respectfully requests that the District Court:

1. Recuse Magistrate Judge Mary Gordon Baker from all further proceedings under 28 U.S.C. § 455(a) and (b)(1);
2. Vacate or review *de novo* all orders entered by Judge Baker, including the October 17 and October 20 2025 orders and any related discovery rulings;
3. Reassign pre-trial matters to a neutral magistrate judge, with no objection from Plaintiff if reassignment is made to Judge Molly H. Cherry; and
4. Grant any further relief the Court deems just and proper.

Exhibit List

Exhibit A – *Motion to Expedite Subpoenas* (Filed October 2, 2025)

Demonstrates Plaintiff's repeated efforts to secure timely service and compliance with discovery deadlines.

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Exhibit B – Deficiency Notice from New Jersey Superior Court (Verizon Subpoena)
Shows procedural delays and lack of court coordination that hindered Plaintiff's ability to serve subpoenas within the discovery window.

Exhibit C – October 17, 2025 Order (Dkt 185) Denying Motion for Extension of Discovery
Reflects the Court's refusal to extend discovery despite documented delays caused by the subpoena process.

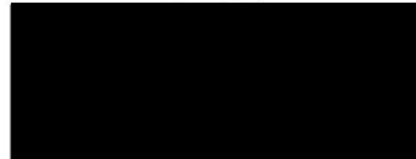
Exhibit D – October 20, 2025 Order (Dkt. 192) Denying Motion to Compel (Dkt. 105) and Motion to Strike (Dkt. 176) (7 pages)
Shows the Court's adoption of defense arguments and factually unsupported findings, including statements that certain documents "do not exist" and that the Hunt Law subpoena was "plainly incorrect."

Exhibit E – Countryman Objection to Subpoena (October 21, 2025) (Dkt. 196)
Filed one day after the Court's order and quotes the same language verbatim, supporting Plaintiff's claim of improper alignment between defense counsel and the Magistrate Judge.

Exhibit F – Notice of Procedural Prejudice and Request for Reimbursement of Costs
Details the cumulative procedural delays and financial burden caused by the Court's handling of discovery and subpoena enforcement.

Respectfully submitted 27th of October, 2025,


Debra Nelson
Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on this 27th day of October, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion for Recusal of Magistrate Judge Mary Gordon Baker and Request to Vacate Prior Orders** by U.S. Mail and by email, postage prepaid, addressed to:

T. Chase Samples, Esq.
Joseph V. Valenza, Esq.
Jackson Lewis P.C.
15 South Main Street, Suite 700
Greenville, SC 29601

Case No. 2:25-CV-00405-RMG-MGB

Respectfully submitted 27th of October, 2025,

A handwritten signature in cursive script that reads "Debra Nelson". The signature is written in dark ink and is positioned above a horizontal line.

Debra Nelson

Pro Se Plaintiff



EXHIBIT A

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

V.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,**

Defendants,

) C.A. No.: 2:25-CV-00405-DCN-MHC
)
)
)
)
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)
)

**PLAINTIFF'S MOTION TO EXPEDITE REISSUANCE OF SUBPOENAS (DATE
CORRECTION ONLY)**

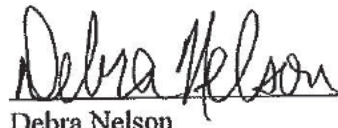
Plaintiff, appearing pro se, respectfully moves the Court for an order directing the Clerk of Court to reissue four subpoenas previously approved by this Court, with the only modification being correction of the compliance/return dates.

1. On August 27, 2025 the Court approved and issued four subpoenas requested by Plaintiff.
2. No changes to the parties, recipients, or scope of the subpoenas are being sought.
3. The only correction requested is to update the compliance/production dates so that the subpoenas remain enforceable and consistent with the current discovery deadlines.
4. Because the subpoenas have already been reviewed and approved, the requested reissuance is purely administrative and does not require further substantive judicial review.
5. Discovery deadlines are approaching, and continued delay in reissuance would prejudice Plaintiff's ability to obtain necessary evidence.

WHEREFORE, Plaintiff respectfully requests that the Court direct the Clerk of Court to promptly reissue the four subpoenas previously approved, with updated compliance dates, on an expedited basis.

Respectfully submitted 2 of October, 2025,

EXHIBIT A

_____

Debra Nelson

Plaintiff, Pro Se



EXHIBIT B

New Jersey Courts

Independence • Integrity • Fairness • Quality Service

Administrative Office of the Courts

Steven D. Bonville, Esq.
Chief of Staff

Michelle M. Smith, Esq.
Clerk of the Superior Court

Kathryn Gilbertson Shabel, Esq.
Deputy Clerk

DOCUMENT DEFICIENCY NOTICE: ISSUANCE OF FOREIGN SUBPOENA

Date: 10/24/2025	By: Agent # 193	Phone: 609-421-6100
Case Caption DEBRA NELSON V. CURTISS WRIGHT ELECTRO ET AL.		Docket Number 2:25-cv-00405-DCN-MGN
Request Number: EF-3716095		

The enclosed subpoena is being returned unprocessed for the following reason(s)

☐	Required filing fee (a) the correct filing fee was not received or is insufficient. The correct fee is \$50.00 for each New Jersey Subpoena, \$60.00 for Subpoena with Seal. See R.4:11-4, R.1:43
☒	Foreign Subpoena does not contain necessary phrase below the case number: "FOR THE ISSUANCE OF A NEW JERSEY SUBPOENA UNDER NEW JERSEY RULE 4:11-4(B)"
☐	Missing subpoena from foreign jurisdiction.
☐	Missing New Jersey subpoena. You must submit proposed NJ subpoena for our Clerk's review/execution
Comments: We are unable to process your subpoena request as it was non-conforming. Along with the above; 1) Form AO 88B is obsolete and not used, Rules cited are Federal rules. Not the State of New Jersey 2) The other NJ subpoena you submitted cannot be used as is. We do not have Out of State Subpoena Templates. The first paragraph must be fully recreated, the are not appearing before the Superior Court of NJ or at our court house. 3) Foreign docket number must be included on NJ subpoena. 4) Full address of party being served must accompany their name on NJ subpoena. 5) Place date and time to appear must be included on NJ subpoena. 6) Place to appear must be a non-court NJ address unless specified "No Appearance Required" or "Virtual Appearance". Both subpoenas must contain that same information. 7) You have completed a Certification of Service, you cannot serve a subpoena until both are fully executed. 8) You will be out of time, Subpoena must be served at least 10	



EXHIBIT B

days prior to the date to produce. ***We do not guarantee turn around time, all filings are processed in the order in which received. Please review the New Jersey Court Rules before refiling. If need additional assistance, please contact our Help Desk at 609-421-6100.



EXHIBIT C**Orders on Motions**2:25-cv-00405-RMG-MGBNelson v. Curtis-WrightCorporation et al**JURY**

U.S. District Court

District of South Carolina

Notice of Electronic Filing

The following transaction was entered on 10/17/2025 at 9:40 AM EDT and filed on 10/17/2025

Case Name: Nelson v. Curtis-Wright Corporation et al

Case Number: 2:25-cv-00405-RMG-MGB Filer:

Document Number: 185(No document attached)

Docket Text:

TEXT ORDER granting [1631 Motion to Reissue Subpoenas; denying [1801 Motion for Limited Relief. On October 8, 2025, Plaintiff filed a Motion to Reissue Subpoenas pertaining to subpoenas she previously issued to non-parties Verizon Wireless and Motorola Solutions, Inca (Dktg No. 163.) In her Motion, Plaintiff explains that "Verizon's Subpoena Compliance Department [informed her] that production could not be directed to Plaintiff's home address and must instead be returnable to... a third.party custodian." (Idu at 1.) Plaintiff explains that she has now designated a third party entity as her records custodian and therefore asks that the Court reissue an updated subpoena to Verizon Wirelesse (Ida) Plaintiff further explains that her original subpoena to "Motorola Solutions, Inca" identified the wrong party and asks that the Court issue a subpoena for "Motorola Mobility, LLC" instead. (Ida)

Upon review, the undersigned finds that Plaintiffs Motion to Reissue Subpoenas (Dkt. No. 163) should be GRANTED, The Clerk of Court is directed to issue the Third Party Subpoenas submitted by Plaintiff in connection with her Motion (Dkt. No. 170), and to return the issued subpoenas to Plaintiff for prompt service upon the third parties. Plaintiff is reminded that she is responsible for service of the subpoenas, in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure. Moreover, Plaintiff is responsible for paying all costs associated with the production of documents requested by the subpoenas.

Further, it is not yet clear that non-parties Verizon Wireless and Motorola

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Solutions, Inc. will be unable to comply with the newly issued subpoenas by the November 5, 2025 discovery deadline. As such, Plaintiff's request to extend the discovery deadline on this basis (Dkt. No. 180) is DENIED, without prejudice and

1 of 2 10/17/2025, 9:40 AM CM/ECF - scd

<https://scd-ecf.sso.dcn/cgi-bin/Dispatch.pl?461740163950579>

with leave to refile should non-parties Verizon Wireless and Motorola Solutions, Inc. indicate they are unable to comply with the newly issued subpoenas by November 5, 2025. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025-(dgar)

2:25-cv-00405-RMG-MGB Notice has been electronically mailed to:

Robert W Whelan robbie@whelanmellen.com, johdie@whelanmellen.com, mary@whelanmellen.com

Brian C Duffy bduffy@duffyandyoung.com, supportstaff@duffyandyoung.com

Andrew Wesley Countryman awc@countrymanlawfirm.com, , sgc@countrymanlawfirm.com

Thomas Chase Samples chase.samples@jacksonlewis.com, GreenvilleDocketing@JacksonLewis.com, chase-samples:4550@ecf.pacerpro.com, jane.grubbs@jacksonlewis.com, melissa.bishop@jacksonlewis.com

Robert Lewis Wehrman rwehrman@duffyandyoung.com, supportstaff@duffyandyoung.com

Joseph Vincent Valenza joseph.valenza@jacksonlewis.com, Marie.Wilson@jacksonlewis.com, greenvilledocketing@jacksonlewis.com, joseph-valenza-8747@ecf.pacerpro.com

Nury Siekkinen nury@zwillgen.com

2:25-cv-00405-RMG-MGB Notice will not be electronically mailed to:

Debra Nelson
2718 Crestline Drive
North Charleston, SC 29405

EXHIBIT C

EXHIBIT D

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions filed by Plaintiff, including a Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176). For the reasons set forth below, Plaintiff's Motions (Dkt. Nos. 105, 176) are **DENIED**.

DISCUSSION

Plaintiff filed the instant Motion to Compel on September 16, 2025. (Dkt. No. 105.) In her Motion, Plaintiff requests an Order from the Court: (1) compelling Defendants to respond to her discovery requests, (2) enforcing a nonparty subpoena directed to her former attorney, Bonnie Hunt of Hunt Law LLC, and (3) allowing Plaintiff to conduct a "narrowly tailored Rule 34(a)(2)

inspection of [Defendant Curtiss Wright's] premises. (*Id.* at 1.) More specifically, Plaintiff takes issue with Defendants' purported failure to produce a "timekeeping audit trail . . . showing who altered Plaintiff's hours, when, and why," and claims that Defendants' response to two of her Requests for Production are insufficient because Defendants aver that no responsive documents exist, which Plaintiff believes is untrue. (*See generally id.*) Plaintiff also appears to contend that Defendants and/or Defense counsel "compensated her former attorney." (*Id.* at 2.) Thus, Plaintiff requests that the Court enforce the nonparty subpoena she directed to her former attorney so she may prove "bias/collusion." (*Id.*)

In response, Defendants argue that Plaintiff's Motion to Compel should be denied for several reasons. (Dkt. No. 133.) First, Defendants contend that they properly responded to Plaintiff's discovery requests and, in any event, Plaintiff's Motion to Compel is premature because the discovery responses she seeks were not yet due at the time Plaintiff filed her Motion. (*Id.* at 2–4.) Second, Defendants contend that Plaintiff never requested a Rule 34 inspection and has no legitimate basis upon which to do so. (*Id.* at 4–5.) Third, Defendants contend that Plaintiff failed to confer with Defense counsel prior to filing her Motion. (*Id.* at 5–6.) In reply, Plaintiff admits that she filed her Motion to Compel (Dkt. No. 105) before sending a formal meet and confer letter to Defense counsel but nonetheless reiterates her request that the Court compel Defendants to supplement their discovery responses and "permit a limited-scope Rule 34 inspection of their premises." (Dkt. No. 139 at 3.) Upon review, Plaintiff's Motion to Compel (Dkt. No. 105) must be **DENIED**.

At the outset, Plaintiff admits that she filed her Motion prior to conferring, or attempting to confer in good faith, with Defense counsel. (Dkt. No. 139 at 3.) Accordingly, Plaintiff did not comply with Federal Rule of Civil Procedure 37(a)(1) and her Motion to Compel could be denied

EXHIBIT D

on this basis, alone. See *Anderson v. Amazon.com Servs., LLC*, No. 4:23-CV-115-D, 2025 WL 1287984, at *8 (E.D.N.C. May 2, 2025) (“This court has the discretion to deny a motion to compel for failing to meet the requirements of Fed. R. Civ. P. 37(a)(1) . . .”).

Further, as Defendants correctly note, Plaintiff seeks to compel information that does not exist and/or information that was not yet due at the time she filed her Motion. (Dkt. No. 133 at 2.) With respect to Plaintiff’s claim that Defendants must produce “the timekeeping audit trail and associated metadata,” the record confirms that Plaintiff did not submit this request to Defendants until her Third Requests for Production, which she served on September 16, 2025, the same day she filed the instant Motion. (Dkt. Nos. 105-1, 133-1.) Thus, Plaintiff’s Motion to Compel (Dkt. No. 105) is **DENIED** as premature to the extent it requests an Order compelling production of the aforementioned “timekeeping audit trail and associated metadata.”

Plaintiff’s remaining qualms with Defendants’ discovery responses ask the Court to compel Defendants to produce information that is either already in Plaintiff’s possession or does not exist. As this Court has previously informed Plaintiff, it cannot compel Defendants to furnish information they do not possess. See, e.g., *Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) (“It is axiomatic that a party cannot be ordered to produce documents that do not exist.”); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) (“[A] subpoena can only direct an individual or entity to produce materials in their ‘possession, custody, or control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”). This portion of Plaintiff’s Motion to Compel (Dkt. No. 105) is therefore **DENIED**.

EXHIBIT D

Turning to Plaintiff's request that the Court permit her to inspect Defendants' premises, this request must also be **DENIED**. Pursuant to Federal Rule of Civil Procedure 26, "[p]arties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case" The Court must consider "whether the burden or expense of the proposed discovery outweighs its likely benefit" when resolving discovery disputes. *Id.* Here, the undersigned agrees with Defendants that the requested inspection is "unlikely to lead to the discovery of admissible evidence." (Dkt. No. 133 at 4.) Plaintiff seems to believe that the requested inspection of Defendant Curtiss Wright's premises will allow her to inspect the area in which she used to work, as well as "printers/equipment tied to access issues; time-clock/clock-in stations relevant to Sept. 2023." (Dkt. No. 105 at 3.) However, she fails to explain how this inspection will assist her in proving her claims and/or why she cannot obtain the information she seeks through Interrogatories and Requests for Production.¹ (*See generally* Dkt. No. 105.) Given that Plaintiff's claims stem from events occurring more than two years ago, the undersigned expects that an inspection of Defendant Curtiss Wright's present-day premises will prove less than helpful. What is more, the requested inspection would impose a significant burden on Defendant Curtiss Wright's operations. As such, Plaintiff's request for inspection must be **DENIED**.

Plaintiff's attempt for the Court to enforce a nonparty subpoena directed to Plaintiff's prior counsel must similarly be **DENIED**. Plaintiff's Motion to Compel (Dkt. No. 105) offers limited information about this subpoena, but a review of the docket, (Dkt. Nos. 164, 171, 172), and Plaintiff's Motion to Strike, (Dkt. No. 176), provides additional context.

¹ In fact, Plaintiff seems to suggest that the inspection is only necessary if "Defendants fail to produce the timekeeping audit logs and complete HR/disciplinary files identified . . . or if the production reveals gaps that require physical verification." (Dkt. No. 105 at 4.)

EXHIBIT D

The record reflects that Plaintiff has filed two “Notices of Service of Subpoena” with the Court—one on October 8, 2025 and one on October 9, 2025—which both pertain to the same nonparty subpoena seeking “non-privileged communications and financial records reflecting contacts or payments between Curtiss-Wright (including its outside counsel) and Hunt/Hunt Law concerning Plaintiff.” (Dkt. Nos. 164, 171.) Plaintiff appears to have “served” the subpoena at issue on Hunt Law LLC via the South Carolina Secretary of State. (Dkt. Nos. 164, 171.) On October 9, 2025, Andrew Countryman of Countryman Law Firm filed an objection to Plaintiff’s Notices of Service on behalf of Bonnie Hunt and Hunt Law LLC, explaining that the subpoena at issue was not validly served, and that the materials requested by Plaintiff are irrelevant. (Dkt. No. 172.)

In the Motion to Strike Plaintiff filed on October 14, 2025, she asks that the Court “strike the October 9, 2025 filing by non-party counsel.” (Dkt. No. 176 at 1.) Plaintiff contends that the subpoena at issue was “expressly approved by this Court,” and that she is entitled to a “Protective Order directing that Mr. Countryman and Hunt Law, LLC shall make no further filings in this action without first obtaining leave of Court, except where responding to a direct Court order or subpoena.” (*Id.* at 4.) Plaintiff further requests that the Court “[a]ffirm” that her subpoena service to the South Carolina Secretary of State—as opposed to service upon Bonnie Hunt as the registered agent for Hunt Law, LLC—was “completed in good faith and consistent with the Court’s prior order.” (*Id.*)

Upon review, the undersigned finds no basis on which to grant Plaintiff’s Motion. Critically, this Court did not “expressly approve” the nonparty subpoena at issue here. (*See* Dkt. No. 73.) Plaintiff’s claims to the contrary are plainly incorrect. (*See* Dkt. Nos. 73, 105, 176.)

In addition, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis []

EXHIBIT D

applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). Ultimately, giving the nonparty status “special weight,” a court must determine “whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.” *Id.*; *Spring v. Bd. of Trustees of Cape Fear Cmty. Coll.*, No. 7:15-CV-84-BO, 2016 WL 4204153, at *1 (E.D.N.C. Aug. 8, 2016). Here, it does not. In fact, the “non-privileged communications” between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff’s Fourth Amended Complaint.² (*See generally* Dkt. Nos. 79, 105, 164, 171, 172, 176, 178.) What is more, Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants. (*See generally* Dkt. Nos. 105, 176.)³

Further, Plaintiff’s request for a protective order prohibiting attorneys Countryman and Hunt from submitting additional filings with the Court simply lacks merit. Not only does this request misconstrue Federal Rule of Civil Procedure 26(c), but the record clearly indicates that the only filings submitted by Countryman on behalf of Hunt pertain to the Notices of Service of Subpoena Plaintiff filed involving Bonnie Hunt and Hunt Law LLC. (*See generally* Dkt. Nos. 172, 179.) Accordingly, Plaintiff’s Motion (Dkt. No. 176) is **DENIED IN FULL**.

² It is worth noting that Plaintiff was provided a copy of her casefile when Bonnie Hunt withdrew as counsel for Plaintiff. (Dkt. No. 172 at 1.)

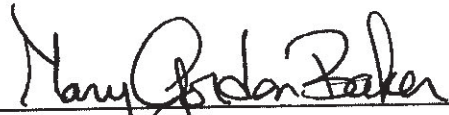
³ Because the information requested in the subpoena at issue is irrelevant to Plaintiff’s claims, whether the subpoena was validly served is immaterial and the undersigned need not address this argument; Plaintiff’s requests to enforce the subpoena are **DENIED**, regardless.

EXHIBIT D

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176) are **DENIED**.

IT IS SO ORDERED.



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

October 20, 2025
Charleston, South Carolina

EXHIBIT E

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARELSTON DIVISION

Debra Nelson,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions,
Stephanie Lanier, and Shane Sablotsky,

Defendants.

Case No.: 2:25-cv-00405-DCN-MGB

**OBJECTION TO PLAINTIFF'S
SUBPOENA TO NON-PARTIES BONNIE
TRAVAGLIO HUNT AND HUNT LAW,
LLC**

TO: PLAINTIFF DEBRA NELSON, *PRO SE*:

Non-Parties Bonnie Travaglio Hunt and Hunt Law, LLC (collectively "Hunt") object to Plaintiff Debra Nelson's Subpoena to Hunt Law, LLC dated October 2, 2025 (Ex. 1) pursuant to FRCP 45(d)(2)(B) as follows:

BACKGROUND

Plaintiff filed ECF No. 164 on October 8, 2025, followed by ECF No. 171 on October 9, 2025. Both pleadings are notices of service of a purported subpoena on Hunt. The notices did not include a copy of the subpoena but did include language generally describing what the subpoena seeks. On October 9, 2025, Hunt filed ECF No. 172, a notice of objection to ECF Nos. 164 and 171.

Plaintiff then filed ECF No. 176, a motion to strike ECF No. 172, on October 14, 2025. Hunt then filed ECF No. 179, a response in opposition to Plaintiff's motion to strike. On October 20, 2025, the Court issued ECF No. 192, an Order denying, *inter alia*, Plaintiff's motion to strike. In ECF No. 192, the Court denied Plaintiff's motion to strike, found the subpoena unauthorized and unenforceable, and noted Plaintiff's 'plainly incorrect' claim of court approval of the subpoena

EXHIBIT E

under ECF No. 73. The Court also found the material the subpoena seeks has ‘absolutely no relevance’ to Plaintiff’s claims in this case. ECF No. 192, p. 6.

On October 20, 2025, Hunt received a subpoena in this case via certified mail, no return receipt requested or restricted delivery. Ex. 1.

OBJECTIONS

1. Unauthorized Subpoena

As ruled in ECF No. 192, p. 5, the Court did not ‘expressly approve’ the subject subpoena under ECF No. 73, deeming Plaintiff’s claims to the contrary ‘plainly incorrect.’ The subpoena is therefore invalid and has no effect.

2. Irrelevant and Harassing

The requested records (non-privileged communications and financials with Curtiss-Wright) are irrelevant to your claims in this case, as noted in ECF No. 192. Hunt already provided Plaintiff with a copy of the casefile upon withdrawal in compliance with South Carolina Rule of Professional Conduct 1.16(d). There is no basis to claim Hunt received any sort of “payoff” from Curtis-Wright or its lawyers. That simply did not happen. Maintaining otherwise is baseless and appears intended to defame and/or harass Hunt. This aligns with the Court’s finding that the material sought has ‘absolutely no bearing’ on Plaintiff’s claims in this case. ECF No. 192, p. 6.

3. Undue Burden

Compliance would impose undue burden without good cause. FRCP 45(d)(3)(A)(iv); *see also V.A. Dept. of Corr. v. Jordan*, 921 F.3d 180 (4th Cir. 2019). Especially considering the irrelevance of the material sought with respect to Plaintiff’s claims in this case, she must show, and a court must determine, whether the benefits of discovery to the requesting party outweigh the burdens on the recipient. *Id.*, Springs v. Bd. of Trustees of Cape Fear Cmty. Coll., No. 7:15-cv-

EXHIBIT E

84-BO, 2016 WL 4204153 at 1 (E.D.N.C. Aug. 8, 2016). As a non-party, Hunt is entitled to heightened protection from such burdens.

Per ECF No. 192, p. 6, the irrelevance outweighs any benefit, posing undue burden. Further, Plaintiff has not demonstrated, nor can she, that she is unable to obtain the requested material from the Defendants.

4. Invalid Service

Service via certified mail (without return receipt or restricted delivery) does not comply with Fed. R. Civ. P. 45(b)(1). Federal courts interpret this as in-hand service, not mail. Courts that have allowed alternate means of service (like certified mail, no return receipt or restricted delivery), have done so only after the party requesting the accommodation diligently attempted to effectuate personal service. *See, e.g., Oceanfirst Bank v. Hartford Fire Ins. Co.*, 794 F.Supp.2d 752 (E.D. Mich. 2011); *Franklin v. State Farm Fire & Cas. Co.*, 2009 WL 3152993 (E.D. Mich. 2009). While some courts in the 4th Circuit allow alternatives after diligence (*e.g., Hall v. Sullivan*, 229 F.R.D. 501, 506 (D. Md. 2005)), Plaintiff shows no such attempts here, nor is Hunt aware of any. Therefore, the subpoena has not been properly served and is ineffective.

CONCLUSION

ECF No. 192 clearly indicates, 'Plaintiff's requests to enforce the subpoena are **DENIED**, regardless.' Footnote, p. 6. Therefore, Hunt will not respond to the subpoena further unless the Court otherwise orders. Under these circumstances, Hunt kindly requests Plaintiff withdraw the subpoena immediately. Continued pursuit despite ECF No. 192 may warrant sanctions under Rule 45(d)(1) or Rule 11 for frivolous conduct. If Plaintiff does not withdraw the subpoena, Hunt reserves all rights, including to move to quash and seek sanctions.

[signature page to follow]

EXHIBIT E

Respectfully submitted,



By: _____

Andrew W. Countryman
COUNTRYMAN LAW FIRM
Federal Bar No.: 9678
210 Wingo Way, Suite 400
Mount Pleasant, SC 29464
843-253-4477

awc@countrymanlawfirm.com

**Lawyer for Non-Parties Hunt Law,
LLC and Bonnie Travaglio Hunt**

October 21, 2025.

EXHIBIT E

**IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARELSTON DIVISION**

Debra Nelson,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions,
Stephanie Lanier, and Shane Sablotsky,

Defendants.

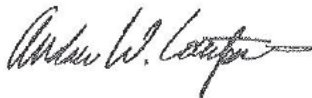
Case No.: 2:25-CV-00405-DCN-MGB

CERTIFICATE OF SERVICE

The undersigned certifies that immediately upon the court accepting the foregoing pleading as filed, a copy of the same will be served on Plaintiff, *pro se*, US Mail addressed as follows (all other counsel of record being electronically served through the ECF system):

Debra Nelson

Plaintiff (*pro se*)



Andrew W. Countryman
October 21, 2025
Mt. Pleasant, SC

EXHIBIT E

UNITED STATES DISTRICT COURT

for the
District of South Carolina



DEBRA NELSON

Plaintiff

v.

Curtiss Wright Electro Mechanical Corp. d/b/a
Curtiss-Wright Steam and Air Solutions, STEPHANIE
LANIER and SHANE SABLITSKY

Defendant

Civil Action No. 2:25-cv-00405-DCN-MHC

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

To: Bonnie Travaglio Hunt, Esq.
Hunt Law LLC

(Name of person to whom this subpoena is directed)

☒ **Production:** YOU ARE COMMANDED to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: Non-privileged communications and financial records

Place: Debra Nelson 2718 Crestline Drive North Charleston, SC 29405	Date and Time: 10/30/2025 5:00 p.m. EST
---	--

Inspection of Premises: YOU ARE COMMANDED to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:
--------	----------------

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: October 02, 2025

CLERK OF COURT



OR

Signature of Clerk or Deputy Clerk

Attorney's signature

The name, address, e-mail address, and telephone number of the attorney representing (name of party) _____, who issues or requests this subpoena, are:
Debra Nelson, Pro Se, 2718 Crestline Drive North Charleston, SC 29405, nelsondebra82@gmail.com, 843-277-4142

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

EXHIBIT E**Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)****(c) Place of Compliance.**

(1) *For a Trial, Hearing, or Deposition.* A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

- (A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or
- (B) within the state where the person resides, is employed, or regularly transacts business in person, if the person
 - (i) is a party or a party's officer; or
 - (ii) is commanded to attend a trial and would not incur substantial expense.

(2) *For Other Discovery.* A subpoena may command:

- (A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and
- (B) inspection of premises at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena: Enforcement.

(1) *Avoiding Undue Burden or Expense; Sanctions.* A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) *Command to Produce Materials or Permit Inspection.*

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

- (i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.
- (ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) *Quashing or Modifying a Subpoena.*

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

- (i) fails to allow a reasonable time to comply;
- (ii) requires a person to comply beyond the geographical limits specified in Rule 45(e);
- (iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or
- (iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

- (i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(2)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

- (i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and
- (ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

(1) *Producing Documents or Electronically Stored Information.* These procedures apply to producing documents or electronically stored information:

(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) *Claiming Privilege or Protection.*

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

- (i) expressly make the claim; and
- (ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) *Contempt.*

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

EXHIBIT E

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-DCN-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLOTSKY,	)	
	)	
Defendants,	)	

SCHEDULE A TO SUBPOENA DUCES TECUM

Directed to: HUNT LAW LLC and BONNIE HUNT (Non-Party)

This Schedule A is incorporated into and attached to the AO 88B Subpoena to Produce Documents.

DEFINITIONS AND SCOPE

- “Curtiss-Wright” or “CW” means Curtiss-Wright Electro Mechanical Corporation and any parent, subsidiary, affiliate, division, employees, agents, or outside counsel (including Jackson Lewis P.C.).
- “Hunt” means Bonnie Hunt and Hunt Law LLC.
- “Communication” means emails, letters, text/SMS/Signal/WhatsApp/Teams/Slack messages, voicemails, memoranda, notes of phone calls, and any written correspondence.
- Timeframe: October 1, 2024 to present, unless otherwise specified.

DOCUMENTS TO BE PRODUCED

1. All Communications between Hunt and Curtiss-Wright or its outside counsel (including Jackson Lewis P.C.) concerning Debra Nelson, her employment, her claims, or her legal representation.

EXHIBIT E

2. All Documents evidencing payments, reimbursements, transfers of funds, gifts, or things of value from Curtiss-Wright (or its outside counsel/agents) to Hunt relating to Debra Nelson or her claims, including invoices, time entries, engagement letters, check stubs, wire/ACH confirmations, 1099s, and ledger entries.
3. All internal notes, memos, handwritten notes, or summaries created by Hunt that reflect or memorialize contacts or Communications with Curtiss-Wright or its outside counsel concerning Debra Nelson.
4. All Communications with third parties (excluding Debra Nelson) concerning any contact or payment between Hunt and Curtiss-Wright/outside counsel regarding Debra Nelson.
5. Documents sufficient to identify the dates, participants, and subjects of any phone calls or meetings between Hunt and Curtiss-Wright/outside counsel concerning Debra Nelson, including calendar entries, call logs, and firm timekeeping entries.
6. Any conflict checks or waivers referencing Debra Nelson and Curtiss-Wright.

ESI AND PRODUCTION FORMAT

- Produce electronically in native format with metadata where available (e.g., .msg/.eml for emails), or as searchable PDFs with family relationships preserved (email + attachments).
- Name each production with the producing entity (HUNT) and provide a simple index listing custodians and date ranges.

PRIVILEGE AND REDACTIONS

- If any document is withheld or redacted based on privilege or work-product, provide a privilege log compliant with Fed. R. Civ. P. 45(e)(2)(A) and 26(b)(5), identifying date, authors/recipients, subject, and the specific privilege asserted.
- Do not withhold non-privileged factual information (such as the fact of a communication, date, and participants). Personal identifying information of unrelated clients may be redacted.

PLACE AND METHOD OF COMPLIANCE

Production may be made electronically by email to denelson62@outlook.com or delivered on a USB drive by mail to 2718 Crestline Drive, North Charleston, SC 29405 by the compliance date stated on the subpoena.

EXHIBIT E

CERTIFICATION

Please include a brief certification stating that a reasonable search was conducted and production is complete to the best of your knowledge.

EXHIBIT E

2:25-cv-00405-RMG-MGB

Date Filed 10/21/25

Entry Number 196-1

Page 6 of 6

2:25-cv-00405-RMG-MGB

Date Filed 10/27/25
11

Entry Number 199-5

Page 11 of

Debra Nelson

CERTIFIED MAIL

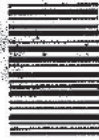


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OCT 09, 2025

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Bonnie T. Hunt / Hunt Law LLC
P.O. Box 1845
Goose Creek, SC 29445

29445-184545



EXHIBIT F

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

V.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,**

Defendants.

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C.A. No.: 2:25-CV-00405-RMG-MGB

NOTICE OF PROCEDURAL PREJUDICE AND REQUEST FOR
REIMBURSEMENT OF COSTS
(Verizon and Motorola Subpoenas)

1. Purpose of Notice

Plaintiff, appearing *pro se*, respectfully submits this Notice to preserve the record of procedural prejudice, unnecessary expense, and administrative error arising from the Court's delay and denial of Plaintiff's repeated motions for timely reissuance and expedition of third-party subpoenas to Verizon Wireless and Motorola Mobility.

2. Procedural Background

1. October 2, 2025 – Motion to Expedite Reissuance of Subpoenas (Exhibit A):

Plaintiff requested that the Clerk promptly reissue four previously approved subpoenas with corrected compliance dates. This request specifically sought expedited handling to prevent discovery prejudice and noted that no substantive review was necessary.

2. October 8, 2025 – Motion to Reissue Subpoenas (Exhibit B):

Plaintiff filed a separate motion requesting reissuance of the Verizon and Motorola subpoenas to correct the recipient entities and designate a third-party records custodian.

3. October 17, 2025 – Judge’s Order (Exhibit C):

The Court issued a Text Order (Dkt. 185) granting reissuance of the subpoenas but denying Plaintiff's Motion for Extension of Discovery, holding that "it is not yet clear" whether Verizon or Motorola would be unable to comply by November 5, 2025. The Order directed "prompt service" of the subpoenas.

EXHIBIT F**4. October 20, 2025:**

Plaintiff received the reissued subpoenas in the mail nine days after the Order was entered. This left only thirteen business days before the discovery deadline.

5. October 21–22, 2025:

Plaintiff conducted scheduled depositions and then traveled to New Jersey to domesticate the Verizon subpoena under the UIDDA.

6. October 24, 2025 – Deficiency Notice (Exhibit D):

The Superior Court of New Jersey issued Deficiency Notice EF-3716095, rejecting Plaintiff's filing because the subpoena issued by this Court lacked the required state-law phrase ("FOR THE ISSUANCE OF A NEW JERSEY SUBPOENA UNDER RULE 4:11-4(b)") and was based on an obsolete federal AO 88B form. The Clerk further noted that Plaintiff would be "out of time" because subpoenas must be served at least ten days before the production date.

3. Pattern of Procedural Delay

Despite Plaintiff's timely and repeated requests for expedited reissuance, the Court's process required extended judicial review, postal delays, and denied extension requests. The resulting timeline deprived Plaintiff of a meaningful opportunity to secure essential third-party records before the close of discovery.

Although the Order directed "prompt service" of the subpoenas, **the Court took nine days to review and issue them, followed by three additional days of mailing delay before Plaintiff received them.** There was no deviation from the Court's standard operating procedure despite Plaintiff's express request for expedition. **How such delay can be deemed "prompt" is unclear,** particularly when the discovery cutoff was imminent and the subpoenas required out-of-state domestication.

The Deficiency Notice confirms that the delay and form incompatibility were consequences of the Court's own procedures — not any deficiency by Plaintiff.

Plaintiff acted in good faith and exercised caution, choosing to err on the side of diligence rather than gamble with her limited resources. Yet, the Court's actions have done nothing but slow down discovery progress, and then, after causing the delay, the Court denied Plaintiff's request for an extension.

4. Resulting Harm

As a direct result of these procedural defects, Plaintiff incurred:

- Airfare, lodging, and local transportation to and within New Jersey;
- Express mailing, printing, and filing fees for Verizon and Motorola domestications; and
- Significant time loss re-preparing compliant subpoenas under state-specific rules.

These expenses would not have occurred had the Clerk promptly reissued the subpoenas or had the Court extended discovery to accommodate unavoidable delays.

EXHIBIT F**5. Relief Requested**

Pursuant to Fed. R. Civ. P. 37(b)(2)(C), 28 U.S.C. § 1920, and the Court's **inherent authority to remedy procedural prejudice**, Plaintiff respectfully requests that the Court:

1. **Acknowledge in the record** that the delay in processing and refusal to expedite materially prejudiced Plaintiff's discovery rights;
2. **Order reimbursement** of travel and filing expenses reasonably incurred in connection with the Verizon and Motorola subpoenas; and
3. **Reserve Plaintiff's right** to seek additional sanctions or equitable relief if either non-party asserts untimeliness or refuses compliance because of the shortened period.

Plaintiff will submit itemized receipts or a sworn affidavit of expenses upon request.

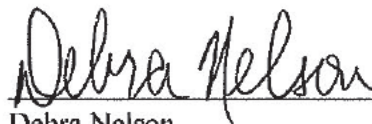
6. Conclusion

The record demonstrates that Plaintiff diligently pursued discovery and filed multiple motions to ensure timely subpoena compliance. The resulting prejudice and financial loss stemmed solely from procedural and administrative delay. This Notice, together with Exhibits A–D, is submitted to preserve the issue for appellate review and to request equitable reimbursement of costs.

Exhibits

- **Exhibit A:** Plaintiff's Motion to Expedite Reissuance of Subpoenas (Oct 2, 2025)
- **Exhibit B:** Plaintiff's Motion to Reissue Subpoenas (Oct 8, 2025)
- **Exhibit C:** Judge Baker's Text Order Granting Reissuance and Denying Extension (Oct 17 2025)
- **Exhibit D:** New Jersey Superior Court Deficiency Notice EF-3716095 (Oct 24, 2025)

Respectfully submitted 27th of October, 2025,



Debra Nelson

Plaintiff, Pro Se



EXHIBIT F

CERTIFICATE OF SERVICE

I hereby certify that on this 27th day of October, 2025, I served a true and correct copy of the foregoing **Plaintiff's Notice of Procedural Prejudice and Request for Reimbursement of Costs** and Exhibits A–D by U.S. Mail and by email, postage prepaid, addressed to:

T. Chase Samples, Esq.

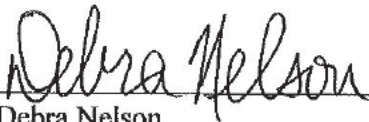
Joseph V. Valenza, Esq.

Jackson Lewis P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Respectfully submitted 27th of October, 2025,

_____

Debra Nelson

Pro Se Plaintiff

